

24STCV14122 24STCV14122

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Division: Civil Law and Motion

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Case Number: 24STCV14122 Hearing Date: August 14, 2026 Dept: 514

Burnett v. Vis A Vis Healthcare

Medical Group of NY PLLC

24STCV14122

Motion to be Relieved as Counsel for Defendant

Tentative Ruling

The motion is granted.

Counsel must submit a new proposed order.

Background

This matter arises out of an employment relationship. On June 5, 2024, Daniel Raju Burnett ("Plaintiff") filed a complaint with fourteen causes of action against Vis A Vis Healthcare Medical Group of NY PLCC dba Heal Doctors PC ("Defendant) and Does 1 through 20.

On July 12, 2024, Defendant filed an answer.

On July 22, 2026, Rachel Chatman and Benesch, Friedlander, Coplan & Aronoff LLP ("Counsel") filed this motion to be relieved as counsel for Defendant.

No opposition has been filed.

Trial is set for August 31, 2026.

Legal

Standard

The court may

order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284, subd. (b).) An attorney is permitted to withdraw where conflicts between the attorney and client make it unreasonable to continue the representation. (See Cal. Rules of Prof. Conduct 3-700(C)(1).) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application

to be relieved as counsel must be made the mandatory forms approved by the Judicial Council. (Cal. Rules of Court, rule 3.1362.) All forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may delay effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).)

Discussion

Counsel has

filed the required notice, declaration, and proposed order on the client and all parties in this matter, as required.

Counsel's

declaration states that Defendant is in the process of winding down, has no assets, and has no funds to pay the firm for the continuing defense of this action. Counsel further reports that the client has instructed counsel to seek to withdraw and no longer to take any action to defend this litigation.

Good cause has

been shown for the relief requested. All

substantive and procedural requirements are satisfied. The motion is granted.

The Court notes

Defendant is a corporate entity (a PLLC).

“[A]

corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.)

Accordingly, it appears that unless Defendant retains new counsel, the trial in this action will proceed as an uncontested matter.

The proposed order submitted requires some modifications.

Item 2 must be completed following the hearing.

In Item 3, box b must be checked.

In Item 5, box a must be checked.

Item 6 must be completed.

In Item 7a, the date of the Final Status Conference (August 18, 2026) must be included.

Counsel is ORDERED to submit a revised proposed order forthwith.

The order granting this motion is effective upon the filing of a proof of service showing service of the signed order (and not merely the Minute Order) on the client.

Until the order is effective, counsel continues to represent Defendant.

Moving counsel is ordered to give notice.